

Note: The guidance in this handbook has been edited to align with Executive Order 14168 [Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government](#) and the President's memorandum [Return to In-Person Work](#).

Handbook on Leave and Workplace Flexibilities for Childbirth, Adoption, and Foster Care



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Tip: Sick Leave is an entitlement that may be used without invoking leave under the Family Medical Leave Act (FMLA). An agency may not deny an employee's request to use sick leave without invoking FMLA. In addition, an agency may not require an employee to substitute sick leave for unpaid FMLA leave without the employee's express consent. [See Section F for information on FMLA.](#)

Sick Leave for Employee's Own Pregnancy and Recovery from Childbirth

An employee who will be giving birth is entitled to use any accumulated or accrued sick leave for prenatal care, any period of incapacity due to pregnancy – including periods of morning sickness or medically prescribed bed rest – childbirth, and recovery from childbirth, including addressing post-partum depression or other mental health conditions following birth. There is no limit on the amount of accumulated and accrued sick leave an employee may use for the employee's own personal medical needs, provided that the leave is used for authorized sick leave purposes.

Scenario: Jody has given birth and has requested 12 weeks of sick leave. Is Jody entitled to use 12 weeks of sick leave?

Jody is only entitled to use sick leave for the period of incapacitation following childbirth. Although most medical professionals certify a 6 to 8 week recovery period, Jody would be entitled to take whatever amount of sick leave Jody's healthcare provider certifies for her recovery period, which may be longer than 6 to 8 weeks.

For more information, see our fact sheets on [Sick Leave \(General Information\)](#) and [Sick Leave for Personal Medical Needs](#).

Sick Leave to Care for a Family Member

An employee is entitled to a total of 12 weeks (480 hours) of sick leave each leave year to care for a family member with a [serious health condition](#). Note: the definition of serious health condition in the sick leave regulations is the same definition as that used in OPM's FMLA regulations.

The individual for whom the employee is providing care must meet the definition of *family member* used for sick leave, voluntary leave transfer program (VLTP), and voluntary leave bank program (VLBP) purposes.

A family member is an individual with any of the following relationships to the employee:

- 1) Spouse, and parents thereof;
- 2) Sons and daughters, and spouses thereof;
- 3) Parents, and spouses thereof;
- 4) Brothers and sisters, and spouses thereof;
- 5) Grandparents and grandchildren, and spouses thereof;
- 6) Domestic partner and parents thereof, including domestic partners of any individual in 2 through 5 of this definition; and
- 7) Any individual related by blood or affinity whose close association with the employee is the equivalent of a family relationship.

The agency determines whom they consider to be an “individual related by blood or affinity whose close association with the employee is the equivalent of a family relationship.” For important associated definitions, please see our fact sheet entitled [Definitions Related to Family Member and Immediate Relative](#).

Examples of authorized sick leave uses for a serious health condition are caring for the pregnant family member for prenatal care; any period of morning sickness or medically prescribed bed rest, childbirth, and recovery from childbirth, including addressing post-partum depression or other mental health conditions following birth; and care of the baby if the baby has a serious health condition.

The employee may also use 13 days (104 hours) of sick leave for general family care—including well-baby visits or minor illnesses. If the employee previously has used any portion of the 13 days of sick leave for general family care or bereavement purposes in a leave year, that amount must be subtracted from the 12-week entitlement. An employee is entitled to no more than a combined total of 12 weeks of sick leave each leave year for all family care purposes.

When an employee requests sick leave to care for a family member, the agency may require the employee to document the employee’s relationship with that family

member. Agencies should establish consistent rules and follow the same documentation requirements for all relationships, but agencies have authority to request additional information in cases of suspected leave abuse.

Sick Leave to Care for a Family Member during Pregnancy and after Birth

An employee caring for a [family member](#) who is pregnant or has given birth is entitled to use sick leave for the family member for prenatal care, any period of incapacity due to the pregnancy – including morning sickness or medically prescribed bed rest – childbirth, or for the family member’s recovery from childbirth. As mentioned above, most health care providers certify that the recovery period from childbirth is about 6-8 weeks, although this period can be longer depending on the needs of the individual and the certification provided by the healthcare provider.

Scenario: Demont’s wife, Sharise, is pregnant with quintuplets and is hospitalized because she is experiencing a high-risk pregnancy. Demont wants to use some of his 600 hours of accrued sick leave to be with her in the hospital. His supervisor denies his request for sick leave for the period of hospitalization, stating that since Demont’s wife will be in the hospital, Demont will not be caring for her and therefore is not entitled to sick leave for that period. Can Demont’s supervisor deny Demont’s invocation of his sick leave entitlement?

OPM’s sick leave regulations allow sick leave to be used if the family member of the employee requires psychological comfort and the family member would benefit from the employee’s care or presence; therefore, Demont’s sick leave request cannot be denied. However, the agency could request certification from the health care provider concerning the family member’s need for psychological comfort and that the family member would benefit from the employee’s care or presence.

Sick Leave to Care for a Newborn

Employees may not use sick leave to be absent from work to bond with or care for a healthy newborn. There is no provision in law or regulation that permits the use of sick leave to bond with or care for a healthy newborn, or for other childcare responsibilities. However, an employee is entitled to use up to 13 days of sick leave each leave year for general family care purposes, i.e. to care for a child who has a routine illness or to take a child to well baby doctor visits or other medical, dental, or optical appointments. If the child has a [serious health condition](#), an employee is

entitled to use up to a total of 12 weeks (480 hours) to care for the child. These 13 days and the 12 weeks are part of the overall entitlement to use 12 weeks of sick leave in a leave year for all family care purposes.

In order to use sick leave to care for a newborn child, the child must meet the definition of [son or daughter](#) or [family member](#) for sick leave purposes.

An agency may request administratively acceptable evidence of a child's illness or treatment.

Tip: Based on the definition of son or daughter, an employee could care for the son or daughter of the employee's domestic partner, even if the employee is not the child's biological or adoptive parent. Also, based on the definition of family member, an employee could take sick leave to care for a grandchild for any of the purposes outlined above.

For information on using leave to care for or bond with a healthy newborn, please [see Section G on Paid Parental Leave](#) and [Section C on Annual Leave](#).

Sick Leave for Bereavement

An employee may use up to 104 hours (13 days) of sick leave in a leave year to make arrangements following the death of a family member or to attend the funeral of a family member, to include the death of a newborn who is a family member or the death of a family member who has given birth.

In addition to sick leave for bereavement purposes, an eligible employee may use parental bereavement leave following the death of a son or daughter as that term is defined in the FMLA regulations. For more information, please see [Section H on Parental Bereavement Leave](#).

For more information, see our fact sheets on [Sick Leave \(General Information\)](#), [Sick Leave for Family Care or Bereavement Purposes](#), and [Sick Leave to Care for a Family Member with a Serious Health Condition](#).

B. Advanced Sick Leave

Upon an employee's request, in accordance with sick leave laws and regulations and consistent with mission needs, an agency may grant advanced sick leave for the same purposes it grants sick leave, as specified in law and regulation. Advanced sick leave

12-Month FMLA Period and Timeframe for Use of FMLA for Birth of a Child

An employee is entitled to 12 weeks of FMLA leave in a 12-month period. An employee's 12-month FMLA period (that is, the timeframe during which the employee may use the 12 weeks of FMLA leave) begins on the date the employee first takes FMLA leave and continues for a 12-month period from the date of first use. An employee is not entitled to 12 additional workweeks of FMLA leave until the previous 12-month period ends and the employee experiences another FMLA qualifying event, which may include a continuation of a previous circumstance.

For example, an employee who takes FMLA leave beginning on January 10, 2024, and exhausts the 12-week FMLA entitlement by mid-April 2024, may not take FMLA leave for any FMLA purpose until a new 12-month period begins for the employee on January 10, 2025.

Any holidays that occur during the period in which an employee is on FMLA leave do not count towards the 12-week entitlement to FMLA leave. Per the FMLA regulations, FMLA leave "is not applied to days designated as holidays and other nonworkdays when the employee would be excused from duty." Note that an employee is paid for a holiday if the employee is in pay status either before or after a holiday. If an employee substitutes paid leave for unpaid FMLA leave (or is in pay status for any reason) either before or after a holiday, the employee will receive pay for the holiday. For additional information, see OPM's [Federal Holidays - Work Schedules and Pay](#) fact sheet.

The entitlement to FMLA leave related to [birth](#) of a baby expires at the end of the 12-month period beginning on the date of the birth. This restriction is set in law and cannot be extended for any reason.

Scenario: Paul and his wife Colleen had a baby March 1, 2024. He used 6 weeks of sick leave to care for Colleen during her recovery following childbirth, from March 1-April 12, 2024. On April 8, 2024, Paul invokes his FMLA entitlement. He receives military orders for a one-year deployment beginning on May 31, 2024. Can Paul use his remaining weeks of FMLA leave for the birth of his child when he returns from deployment?

No, he cannot. Paul's entitlement to FMLA leave related to the birth of his baby expires at the end of the 12-month period beginning on the date of the baby's birth. Since his baby was born on March 1, 2024, his entitlement to FMLA for the baby's birth expires on February 28, 2025. When Paul returns to his Federal civilian position in 2025, his 12-month FMLA entitlement period will have already ended. Because this restriction is set in law, there is no statutory authority to extend his 12-month FMLA period.

FMLA leave related to the birth of a child may be taken before the birth under certain conditions. In the case of an anticipated birth, the leave may be taken (1) by an employee who will give birth based on the employee's [serious health condition](#) related to pregnancy or (2) by an employee who is caring for a [spouse](#), [daughter](#), or [parent](#) who will give birth based on that person's serious health condition related to pregnancy.

Paid parental leave is provided as a substitute for FMLA unpaid leave. Employees should keep in mind that FMLA is limited to a maximum of 12 weeks during any 12-month period. Therefore, if an employee invokes FMLA prior to the birth of a child, the length and/or timing of paid parental leave will be affected. Agencies are encouraged to work with employees to allow for maximum flexibility when it comes to arranging leave options to allow for medical needs leading up to a child's birth and for bonding with and care of the child following the child's birth.

Tip: Since up to 12 weeks of PPL may be substituted for unpaid FMLA leave, employees should consider how use of any FMLA leave prior to the birth of a child will affect the timing of FMLA for birth of a child with substitution of paid parental leave.

leave. She uses her 40 hours of accrued sick leave for bed rest and prenatal appointments from March 7 through March 11. Jordan requests and is granted approval to use her 40 hours of accrued annual leave from March 14 through March 18. She is ineligible to use FMLA at this time.

On March 21, Jordan gives birth to her baby boy. Her doctor certifies a recovery period of 6 weeks. Jordan requests and is granted 240 hours of advanced sick leave to cover her period of recovery from childbirth from March 21 through April 29.

Tip: As soon as Jordan can demonstrate that she will exhaust her [available paid leave](#) (sick leave and annual leave), she may apply to receive donated annual leave through the VLTP or VLBP for her period of recovery from childbirth. She can use the donated annual leave to repay the advanced sick leave taken during her recovery from childbirth.

Jordan applies to be a leave recipient under the VLTP and plans to use any donated annual leave she receives to repay the advanced sick leave used for her recovery from childbirth.

Next, Jordan requests and is granted 40 hours of advanced annual leave for bonding with her son from May 2 through May 6. She cannot use donated annual leave under the VLTP or request advanced sick leave for this purpose because neither type of leave may be used for bonding with a healthy newborn.

On September 15, Jordan meets the 12-months of qualifying Federal service for FMLA eligibility purposes. An employee's entitlement to FMLA leave for birth of a son or daughter expires at the end of the 12-month period beginning on the date of the birth. Since Jordan's baby was born on March 21, she has until March 20, of the subsequent year to use her FMLA with substitution of PPL. Jordan therefore chooses to invoke FMLA with substitution of PPL for a continuous 12-week period from September 19 through December 14. The end date of Jordan's 12 weeks of FMLA/PPL is extended by 3 days because there are 3 Federal holidays that occur while she is on FMLA/PPL, and these do not count toward her FMLA/PPL. FMLA leave is not used on any holiday. While her FMLA/PPL would have ended on December 9, the 3 holidays extend her FMLA/PPL until December 14.

In Summary:

- March 7 – March 11: Sick Leave for bed rest and prenatal appointments (5 days)
- March 14 – March 18: Annual Leave for bed rest and prenatal appointments (5 days)
- March 21: Baby Born
- March 21 – April 29: Advanced Sick Leave for recovery from childbirth (30 days) with retroactive substitution of Donated Annual Leave under the VLTP for the advanced sick leave
- May 2 – May 6: Advanced Annual Leave for bonding with baby (5 days)
- September 19 – December 14: FMLA with substitution of Paid Parental Leave for bonding with baby (12 weeks)